

25SMCV01427 25SMCV01427

County: los-angeles

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Case Number: 25SMCV01427 Hearing Date: July 31, 2026 Dept: P

Tentative

Ruling

Phoebe

Eskovitz, et al. v. Backroads, Case No. 25SMCV01427

Plaintiffs'

Request for Sanctions

Hearing

Date: July 31, 2026

On July

14, 2026, the Court set an OSC re: Discovery Sanctions at the hearing on Backroads' Motion for Stay. The Court found that Backroads' Motion to Stay could be interpreted as a motion for a protective order staying discovery pending appeal, determined that sanctions against Backroads were likely appropriate, and requested further briefing on the issue.

On July

17, 2026, the Eskovitzes submitted a supplemental brief and declaration. On July 24, 2026, Backroads submitted opposition to the Eskovitzes' supplemental brief.

The Eskovitzes

argues that Backroads' Motion for Stay sought a protective order in the alternative, so the discovery act sanctions provisions attached to the protective order apply in full. (Plaintiffs' Supplemental Brief, p. 1.) The Eskovitzes

argues that his request for sanctions was properly noticed in his opposition and through the Court's supplemental briefing procedure. (Id. at pp. 3-4.) The Eskovitzes request \$22,843.63 in attorneys' fees as sanctions. (Id. at p. 6.)

In

opposition, Backroads argues that it acted with substantial justification because it never refused to participate in discovery or engaged in gamesmanship or obstruction, citing *Foothill v. Lyon/Copley Corona Associates* (1996) 46 Cal.App.4th 1542. (Opposition, p. 6.) Backroads also argues that the Eskovitzes' request for sanctions is excessive because some of the fees requested were incurred because of hearing continuances at the Eskovitzes' request. (Id. at p. 7.) Backroads argues that Plaintiffs' request for sanctions did not provide adequate notice of the grounds upon which the Eskovitzes sought sanctions because the opposition did not cite applicable code sections. (Id. at p. 8.) Backroads argues that the Eskovitzes are asking the Court to re-write the discovery act to allow for sanctions for unsuccessful motions to stay. (Id. at p. 9.) Backroads argues that post-hearing argument cannot retroactively make a showing in support of a request for sanctions. (Id. at p. 11.) Backroads also argues that the sanctions the Eskovitzes seek are unsupported by evidence because their attorney does not precisely describe the time he spent working on this case or justify his rate. (Id. at p. 13-14.)

Notice

and the Motion to Stay

In

Backroads' initial motion to stay, it moved "in the alternative, for a protective order staying all discovery while the interlocutory appeal is pending." (Motion for Stay, p. 2) The motion continued: "This motion is brought pursuant to Code of Civil Procedure sections 128, 916(a), 2016.040, 2019.030, 2024.420, 2030.090, and 2031.060." (Id.) Those code sections reference protective orders in general, protective orders in response to interrogatories, and protective orders in response to requests for production. In opposition to Backroads' motion to stay, the Eskovitzes cited Code Civ. Proc. § 2025.420(h), relating to protective orders in depositions. Though the Eskovitzes technically cited the wrong code section, Code Civ. Proc §§ 2030.090 and 2031.060's sanctions provisions are identical to § 2025.420's sanctions provision. Backroads' notice argument here elevates form over substance. Following Backroads' logic, the Eskovitzes would be entitled to sanctions if they changed one number in their opposition. That is not the notice standard on a request

for sanctions under the discovery act. (See Code Civ. Proc. § 2023.040)

Substantially

Justified

Backroads

also argues that its motion to stay was substantially justified, citing *Foothill Properties v. Lyon/Copley Corona Associates* (“*Foothill Properties*”) (1996) 46 Cal.App.4th 1542. In *Foothill Properties*, the Court of Appeal found that Lyon’s position that it would not turn over confidential budget documents until after its motion for a protective order was heard was substantial justification for opposing *Foothill Properties*’ motion to compel further responses to its request for production of documents. (*Foothill Properties*, supra, 46 Cal.App.4th at 1558.) The Court reasoned that “[g]iven Lyon’s valid claim of right to a protective order regarding the unproduced documents, it had substantial justification, as a matter of law, for withholding them until the motion for the protective order was determined, and for opposing the motion to compel.” (*Ibid.*)

This case

is distinct. Lyon had a valid claim for a protective order based on confidentiality concerns. It brought its motion for a protective order to address those concerns specifically. Here, Backroads’ motion to stay was primarily based on a theory that the FAA preempted a California statute, where the trial court had already rejected the same argument, and specifically found that there was no arbitration agreement to which the FAA would apply. Unlike Lyon’s motion for a protective order, Backroads’ motion was not substantially justified. Also, unlike Lyon, Backroads did not object to specific discovery requests—here, Backroads has completely failed to provide any substantive responses to the outstanding discovery.

The bottom

line is that Backroads’ motion for a protective order was not substantially justified, so sanctions are mandatory.

Sanctions

The Eskovitzes

request attorneys’ fees at \$650 per hour for 35.1 hours of work.

A

reasonable attorneys' rate on a motion for sanctions is not based on the rate the attorney charged, but a reasonable rate for the area. (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1098.) Mr. Eskovitz attests that his customary hourly rate for complex litigation matters is over \$1,400 an hour, but asks that the Court find a reduced rate of \$650 an hour is reasonable for the work performed in this manner. The Court agrees and finds that for the work performed in this matter, \$650 per hour is a reasonable rate for the Los Angeles area for an attorney for Mr. Eskovitz's experience.

The

Eskovitzes request a fees for a 35.1 hours of work associated with opposing Backroads' motions for a protective order, broken down as follows: 4.2 hours for reviewing Backroads' motion, 3.6 hours for reviewing the record, 5.4 hours for legal research, 10.8 for drafting and revising opposition, 2 hours for reviewing the reply brief, 2.2 hours for preparing for the hearing and reviewing the tentative ruling, 4.9 hours for preparing the supplemental brief and fee declaration, 1 hour for the initial hearing, and 1 hour for this hearing. (Eskovitz Decl., ¶ 5.)

Some of

these items are excessive. An attorney of Mr. Eskovitz's experience, for example, should be able to review Backroads' stay motion, review the record, research the issues, and draft an opposition in less than 24 hours. Accordingly, the Court will award 14 hours for reviewing and responding to the motion (including research and reviewing the record); 3 hours for reviewing the reply brief and preparing for the hearing; 3 hours for preparing the supplemental brief and fee declaration, and 2 hours for attending both hearings. Plaintiffs are also entitled to costs in the amount of \$27.63.

Totaling

these amounts brings the total sanction award to \$14,327.63 (22 hours times \$650/hour, plus costs).

Conclusion

Plaintiffs

are awarded monetary sanctions against Defendant Backroads in the amount of \$14,327.63 due and payable within twenty (20) days.